List of 100 headnotes for k968 Preemption

968 Preemption (335)
Jurisdiction: All State and Federal

231H LABOR AND EMPLOYMENT (Up to 10,000)
231HXII Labor Relations (Up to 10,000)
231HXII(A) In General 4,254
231H968 Preemption 1,054

1. Friends of Eel River v. North Coast Railroad Authority

Supreme Court of California | July 27, 2017 | 3 Cal.5th 677

Headnote: When a State owns and manages property it must interact with private participants in the marketplace; in so doing, the State is not subject to preemption by the National Labor Relations Act (NLRA), because preemption doctrines apply only to State regulation. 29 U.S.C.A. § 151 et seq.

Document Summary: TRANSPORTATION - Railroads. Application of state environmental requirements to state-owned rail carrier was not preempted by Interstate Commerce Commission Termination Act.

2. United Food and Commercial Workers International Union v. Wal-Mart Stores, Inc.

Court of Appeals of Maryland. | June 22, 2017 | 453 Md. 482

Headnote: Because Congress has never exercised authority to occupy the entire field in the area of labor legislation, the question of whether a certain state action is preempted by federal law is one of congressional intent. U.S. Const. art. 6, cl. 2.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Local interest exception to presumption that state law claims were preempted by NLRA applied to employer's trespass and nuisance action...

3. United Food and Commercial Workers International Union v. Wal-Mart Stores, Inc.

Court of Appeals of Maryland. | June 22, 2017 | 453 Md. 482

Headnote: In cases of arguably protected or prohibited conduct, the Supreme Judicial Court begins with the presumption that the conduct is regulated by the National Labor Relations Act (NLRA) and therefore that state law claims are preempted. U.S. Const. art. 6, cl. 2; National Labor Relations Act §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Local interest exception to presumption that state law claims were preempted by NLRA applied to employer's trespass and nuisance action...

4. United Food and Commercial Workers International Union v. Wal-Mart Stores, Inc.

Court of Appeals of Maryland. | June 22, 2017 | 453 Md. 482

Headnote: The National Labor Relations Act (NLRA) does not preempt state law claims if the conduct at issue is only a peripheral concern of the NLRA. U.S. Const. art. 6, cl. 2; National Labor Relations Act §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Local interest exception to presumption that state law claims were preempted by NLRA applied to employer's trespass and nuisance action...

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5. United Food and Commercial Workers International Union v. Wal-Mart Stores, Inc.

Court of Appeals of Maryland. | June 22, 2017 | 453 Md. 482

Headnote: The National Labor Relations Act (NLRA) does not preempt state law claims when the conduct at issue touches on interests so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, it could not be inferred that Congress intended to deprive the state of the power to act; this is known as the local interest exception to the preemption analysis under the NLRA. U.S. Const. art. 6, cl. 2; National Labor Relations Act §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Local interest exception to presumption that state law claims were preempted by NLRA applied to employer's trespass and nuisance action...

6. United Food and Commercial Workers International Union v. Wal-Mart Stores, Inc.

Court of Appeals of Maryland. | June 22, 2017 | 453 Md. 482

Headnote: To determine whether the local interest exception to the presumption that state law claims are preempted by the National Labor Relations Act (NLRA) applies in cases of arguably prohibited conduct, the courts engage in a two-part inquiry: first, the courts must determine whether there exists a significant state interest in protecting the citizen from the challenged conduct, and, second, the courts must consider whether the exercise of state jurisdiction over the tort claim entails little risk of interference with the regulatory jurisdiction of the National Labor Relations Board (NLRB), which requires that the courts focus on whether the controversy presented to the state court is identical with that which could be presented to the NLRB. U.S. Const. art. 6, cl. 2; National Labor Relations Act §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Local interest exception to presumption that state law claims were preempted by NLRA applied to employer's trespass and nuisance action...

7. United Food and Commercial Workers International Union v. Wal-Mart Stores, Inc.

Court of Appeals of Maryland. | June 22, 2017 | 453 Md. 482

Headnote: Under the second part of the inquiry of whether the local interest exception to the presumption that state law claims are preempted by the National Labor Relations Act (NLRA), whether the exercise of state jurisdiction over the tort claim entails little risk of interference with the regulatory jurisdiction of the National Labor Relations Board (NLRB), the critical inquiry is whether the controversy presented to the state court is identical to or different from that which could have been, but was not, presented to the NLRB; for it is only in the former situation that a state court's exercise of jurisdiction necessarily involves a risk of interference with the unfair labor practice jurisdiction of the NLRB which the arguably prohibited branch of the doctrine was designed to avoid. U.S. Const. art. 6, cl. 2; National Labor Relations Act §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Local interest exception to presumption that state law claims were preempted by NLRA applied to employer's trespass and nuisance action...

8. Hejda v. Bell Container Corporation

Superior Court of New Jersey, Appellate Division. | May 9, 2017 | 450 N.J.Super. 173

Headnote: Not every dispute concerning employment, or tangentially involving a provision of a collective-bargaining agreement, is pre-empted by the LMRA or other provisions of the federal labor law; substantive rights in the labor relations context can exist without interpreting collective-bargaining agreements. Labor Management Relations Act, 1947 § 301, 29 U.S.C.A. § 185(a).

Document Summary: LABOR AND EMPLOYMENT - Collective Bargaining. Employee's workers' compensation retaliation and disability discrimination claims were not preempted by the LMRA.

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9. Hill v. Garda CL Northwest, Inc.

Court of Appeals of Washington, Division 1. | March 27, 2017 | 198 Wash.App. 326

Headnote: Section of the Labor Management Relations Act (LMRA) on suits by and against labor organizations does not preempt nonnegotiable or independent negotiable claims. Labor Management Relations Act, 1947 § 301, 29 U.S.C.A. § 185(a).

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Court improperly awarded employees prejudgment interest in addition to statutory double damages for employer's failure to give required rest...

10. Hill v. Garda CL Northwest, Inc.

Court of Appeals of Washington, Division 1. | March 27, 2017 | 198 Wash.App. 326

Headnote: A right is "nonnegotiable," such that it is not preempted by the section of the Labor Management Relations Act (LMRA) on suits by and against labor organizations, if the state law does not permit it to be waived, alienated, or altered by private agreement. Labor Management Relations Act, 1947 § 301, 29 U.S.C.A. § 185(a).

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Court improperly awarded employees prejudgment interest in addition to statutory double damages for employer's failure to give required rest...

11. Hill v. Garda CL Northwest, Inc.

Court of Appeals of Washington, Division 1. | March 27, 2017 | 198 Wash.App. 326

Headnote: A state law right may be nonnegotiable for certain classes of employees, such that it is not preempted by the section of the Labor Management Relations Act (LMRA) on suits by and against labor organizations, even if the state does not provide that right to all employees. Labor Management Relations Act, 1947 § 301, 29 U.S.C.A. § 185(a).

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Court improperly awarded employees prejudgment interest in addition to statutory double damages for employer's failure to give required rest...

12. Western Cab Company v. Eighth Judicial District Court of State in and for County of Clark

Supreme Court of Nevada. | March 16, 2017 | 390 P.3d 662

Headnote: Pre-emption should not be lightly inferred under the NLRA, since the establishment of labor standards falls within the traditional police power of the state. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Minimum wage amendment to state constitution was not preempted by National Labor Relations Act or ERISA.

13. Western Cab Company v. Eighth Judicial District Court of State in and for County of Clark

Supreme Court of Nevada. | March 16, 2017 | 390 P.3d 662

Headnote: When it is clear or may fairly be assumed that the activities which a state purports to regulate are protected by section of the National Labor Relations Act (NLRA) dealing with right of employees as to organization, collective bargaining, etc., or constitute an unfair labor practice under the NLRA, due regard for the federal enactment requires that state jurisdiction must yield; to leave the states free to regulate conduct so plainly within the central aim of federal regulation involves too great a danger of conflict between power asserted by Congress and requirements imposed by state law. National Labor Relations Act, §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

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Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Minimum wage amendment to state constitution was not preempted by National Labor Relations Act or ERISA.

14. Western Cab Company v. Eighth Judicial District Court of State in and for County of Clark

Supreme Court of Nevada. | March 16, 2017 | 390 P.3d 662

Headnote: Unless a complaint is the kind that a worker should present to the National Labor Relations Board, it is not preempted under San Diego Unions v. Garmon, 359 U.S. 236. National Labor Relations Act, §§ 7, 8, 29 U.S.C.A. §§ 157, 158.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Minimum wage amendment to state constitution was not preempted by National Labor Relations Act or ERISA.

15. Western Cab Company v. Eighth Judicial District Court of State in and for County of Clark

Supreme Court of Nevada. | March 16, 2017 | 390 P.3d 662

Headnote: One type of preemption under the NLRA, known as “Machinists preemption,” prohibits states from regulating conduct that Congress intended to leave open for the free market to determine. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Minimum wage amendment to state constitution was not preempted by National Labor Relations Act or ERISA.

16. Western Cab Company v. Eighth Judicial District Court of State in and for County of Clark

Supreme Court of Nevada. | March 16, 2017 | 390 P.3d 662

Headnote: When a state law establishes a minimal employment standard not inconsistent with the general legislative goals of the NLRA, it conflicts with none of the purposes of the Act; such laws do not compel or preclude negotiation, but merely provide a backdrop for negotiations. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Minimum wage amendment to state constitution was not preempted by National Labor Relations Act or ERISA.

17. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | October 14, 2016 | 4 Cal.App.5th 194

Headnote: While the National Labor Relations Act (NLRA) preemption guidelines in San Diego Unions v. Garmon, 359 U.S. 236, are not to be applied in a literal, mechanical fashion, if the conduct at issue is arguably prohibited or protected by the NLRA, otherwise applicable state law and procedures are ordinarily preempted. National Labor Relations Act § 7, 29 U.S.C.A. § 157.

Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within ”local interest” exception to NLRA preemption.

18. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | October 14, 2016 | 4 Cal.App.5th 194

Headnote: When the conduct at issue is only a peripheral concern of the National Labor Relations Act (NLRA) or touches on interests so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, it could not be inferred that Congress intended to deprive the State of the power to act, courts refuse to invalidate state regulation or sanction of the conduct on preemption grounds. National Labor Relations Act § 7, 29 U.S.C.A. § 157.

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Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within ”local interest” exception to NLRA preemption.

19. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | October 14, 2016 | 4 Cal.App.5th 194

Headnote: If, despite being arguably protected or prohibited by the National Labor Relations Act (NLRA), the conduct at issue involves a deeply-rooted local interest, the question of whether the state action is allowed involves a sensitive balancing of any harm to the regulatory scheme established by Congress, either in terms of negating the National Labor Relations Board's (NLRB) exclusive jurisdiction or in terms of conflicting substantive rules, and the importance of the asserted cause of action to the state as a protection to its citizens. National Labor Relations Act § 7, 29 U.S.C.A. § 157.

Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within ”local interest” exception to NLRA preemption.

20. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | October 14, 2016 | 4 Cal.App.5th 194

Headnote: There is a presumption of preemption for state action concerning conduct arguably prohibited by the National Labor Relations Act (NLRA). National Labor Relations Act § 7, 29 U.S.C.A. § 157.

Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within ”local interest” exception to NLRA preemption.

21. Puglia v. Elk Pipeline, Inc.

Supreme Court of New Jersey. | August 16, 2016 | 226 N.J. 258

Headnote: Under LMRA preemption, there can be a state-court action, but the state court must apply federal law. Labor Management Relations Act, 1947, §301(a), 29 U.S.C.A. §185(a).

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Whistleblowing. Employee's whistleblower retaliation claim under Conscientious Employee Protection Act was not preempted by LMRA or NLRA.

22. Puglia v. Elk Pipeline, Inc.

Supreme Court of New Jersey. | August 16, 2016 | 226 N.J. 258

Headnote: Preemption under the NLRA is choice-of-forum preemption; if there is preemption, then there is no state-court, or even federal-court, jurisdiction. National Labor Relations Act, §§7, 8(a)(1), 29 U.S.C.A. §§157, 158(a)(1).

Document Summary: LABOR AND EMPLOYMENT - Whistleblowing. Employee's whistleblower retaliation claim under Conscientious Employee Protection Act was not preempted by LMRA or NLRA.

23. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | June 30, 2016 | 248 Cal.App.4th 908

Headnote: While the National Labor Relations Act (NLRA) preemption guidelines in San Diego Unions v. Garmon are not to be applied in a literal, mechanical fashion, if the conduct at issue is arguably prohibited or protected by the NLRA, otherwise applicable state law and procedures are ordinarily preempted. National Labor Relations Act § 7, 29 U.S.C.A. § 157.

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Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within "local interest" exception to NLRA preemption.

24. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | June 30, 2016 | 248 Cal.App.4th 908

Headnote: When the conduct at issue is only a peripheral concern of the National Labor Relations Act (NLRA) or touches on interests so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, it could not be inferred that Congress intended to deprive the State of the power to act, courts refuse to invalidate state regulation or sanction of the conduct on preemption grounds. National Labor Relations Act § 7, 29 U.S.C.A. § 157.

Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within "local interest" exception to NLRA preemption.

25. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | June 30, 2016 | 248 Cal.App.4th 908

Headnote: If, despite being arguably protected or prohibited by the National Labor Relations Act (NLRA), the conduct at issue involves a deeply-rooted local interest, the question of whether the state action is allowed involves a sensitive balancing of any harm to the regulatory scheme established by Congress, either in terms of negating the National Labor Relations Board's (NLRB) exclusive jurisdiction or in terms of conflicting substantive rules, and the importance of the asserted cause of action to the state as a protection to its citizens. National Labor Relations Act § 7, 29 U.S.C.A. § 157.

Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within "local interest" exception to NLRA preemption.

26. Walmart Stores, Inc. v. United Food and Commercial Workers International Union

Court of Appeal, Second District, Division 8, California. | June 30, 2016 | 248 Cal.App.4th 908

Headnote: There is a presumption of preemption for state action concerning conduct arguably prohibited by the National Labor Relations Act (NLRA). National Labor Relations Act § 7, 29 U.S.C.A. § 157.

Document Summary: LABOR AND EMPLOYMENT - Unions. Employer's trespass cause of action against union was within "local interest" exception to NLRA preemption.

27. United Food and Commercial Workers Intern. Union v. Wal-Mart Stores, Inc.

Court of Special Appeals of Maryland. | June 1, 2016 | 228 Md.App. 203

Headnote: There are two distinct NLRA preemption principles: (1) Garmon preemption protects the primary jurisdiction of the National Labor Relations Board (NLRB) to determine in the first instance what kind of conduct is either prohibited or protected by the NLRA, and (2) Machinists preemption concerns conduct left by Congress to the free play of economic forces. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Retailer's claims against union for trespass and nuisance were not preempted by National Labor Relations Act.

28. United Food and Commercial Workers Intern. Union v. Wal-Mart Stores, Inc.

Court of Special Appeals of Maryland. | June 1, 2016 | 228 Md.App. 203

Headnote: Whether the local interest exception to Garmon preemption under the NLRA applies is a two-part inquiry: (1) courts determine whether a significant state interest exists in protecting the citizen from the challenged conduct, and if there is no

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such interest, the exception does not apply; (2) if there is, courts then decide whether the exercise of state jurisdiction entails little risk of interference with the regulatory jurisdiction of the National Labor Relations Board (NLRB). National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Retailer's claims against union for trespass and nuisance were not preempted by National Labor Relations Act.

29. United Food and Commercial Workers Intern. Union v. Wal-Mart Stores, Inc.

Court of Special Appeals of Maryland. | June 1, 2016 | 228 Md.App. 203

Headnote: Local interest exception to Garmon preemption under the NLRA can apply not only to state claims brought to protect citizens from violence or likely violence, or from harm caused by torts with a component of malice, but also to state claims advanced to protect against harm to possessory rights in private property, in the absence of violence, threats of violence, imminent violence, or malicious acts. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Retailer's claims against union for trespass and nuisance were not preempted by National Labor Relations Act.

30. United Food and Commercial Workers Intern. Union v. Wal-Mart Stores, Inc.

Court of Special Appeals of Maryland. | June 1, 2016 | 228 Md.App. 203

Headnote: Same core of factual allegations can give rise to “controversies” before the National Labor Relations Board (NLRB) and before a state court that are not identical, in the sense that adjudication of the state claims will interfere with the NLRB's primary jurisdiction, and therefore, state claims arising out of the allegations are not preempted by the NLRA. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Retailer's claims against union for trespass and nuisance were not preempted by National Labor Relations Act.

31. United Food and Commercial v. Wal-Mart Stores, Inc.

District Court of Appeal of Florida, Fifth District. | May 20, 2016 | 192 So.3d 585

Headnote: Broad doctrinal rule that the National Labor Relations Act (NLRA) prohibits state regulation of conduct only arguably protected by the NLRA rests on a belief that Congress, in enacting the NLRA, intended to occupy entire field of labor relations, leaving little room for state law to regulate, and to give National Labor Relations Board (NLRB) primary jurisdiction to adjudicate labor disputes and develop a national labor policy. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

2 Cases that cite this legal issue

Document Summary: Background: Employer brought trespass action against union seeking an injunction against future trespasses and nuisances related to union's picketing on employer's property. The...

32. United Food and Commercial v. Wal-Mart Stores, Inc.

District Court of Appeal of Florida, Fifth District. | May 20, 2016 | 192 So.3d 585

Headnote: Preemption under the National Labor Relations Act (NLRA) may be required, even when one party lacks access to the NLRA, when there is a significant possibility that the conduct at issue is protected under the NLRA. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: Background: Employer brought trespass action against union seeking an injunction against future trespasses and nuisances related to union's picketing on employer's property. The...

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33. Wal–Mart Stores, Inc. v. United Food and Commercial Workers International Union

Colorado Court of Appeals, Div. I. | May 5, 2016 | 382 P.3d 1249

Headnote: The NLRA contains no express preemption provision, but Congress implicitly mandated two types of pre-emption as necessary to implement federal labor policy. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

1 Case that cites this legal issue

Document Summary: Background: National retailer filed complaint for injunctive and declaratory relief from trespassory activities of labor unions in its stores. Retailer moved for summary judgment....

34. Wal–Mart Stores, Inc. v. United Food and Commercial Workers International Union

Colorado Court of Appeals, Div. I. | May 5, 2016 | 382 P.3d 1249

Headnote: Garmon preemption forbids states from regulating activity that the NLRA protects, prohibits, or arguably protects or prohibits. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

1 Case that cites this legal issue

Document Summary: Background: National retailer filed complaint for injunctive and declaratory relief from trespassory activities of labor unions in its stores. Retailer moved for summary judgment....

35. Wal–Mart Stores, Inc. v. United Food and Commercial Workers International Union

Colorado Court of Appeals, Div. I. | May 5, 2016 | 382 P.3d 1249

Headnote: To determine whether a state court claim seeks to regulate conduct arguably prohibited by the NLRA and subject to Garmon preemption, courts ask not whether the state is enforcing a law relating specifically to labor relations or one of general application but whether the controversy presented to the state court is identical to or different from a claim that could have been presented to the National Labor Relations Board. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

1 Case that cites this legal issue

Document Summary: Background: National retailer filed complaint for injunctive and declaratory relief from trespassory activities of labor unions in its stores. Retailer moved for summary judgment....

36. Wal–Mart Stores, Inc. v. United Food and Commercial Workers International Union

Colorado Court of Appeals, Div. I. | May 5, 2016 | 382 P.3d 1249

Headnote: Machinists preemption forbids both the National Labor Relations Board and the states from regulating conduct that Congress intended to leave unregulated and controlled by the free play of economic forces. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

Document Summary: Background: National retailer filed complaint for injunctive and declaratory relief from trespassory activities of labor unions in its stores. Retailer moved for summary judgment....

37. Wal–Mart Stores, Inc. v. United Food and Commercial Workers International Union

Colorado Court of Appeals, Div. I. | May 5, 2016 | 382 P.3d 1249

Headnote: Controversies are not identical for purposes of Garmon preemption merely because they concern the same conduct, if that conduct is objectionable for entirely different reasons under state law and the NLRA. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

1 Case that cites this legal issue

Document Summary: Background: National retailer filed complaint for injunctive and declaratory relief from trespassory activities of labor unions in its stores. Retailer moved for summary judgment....

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38. Wal–Mart Stores, Inc. v. United Food and Commercial Workers International Union

Colorado Court of Appeals, Div. I. | May 5, 2016 | 382 P.3d 1249

Headnote: The rule of preemption under the NLRA is designed to prevent conflict between Congress' regulatory scheme and state and local regulation and to ensure that implementation of the NLRA remains within the exclusive province of the National Labor Relations Board. National Labor Relations Act, § 1 et seq., 29 U.S.C.A. § 151 et seq.

Document Summary: Background: National retailer filed complaint for injunctive and declaratory relief from trespassory activities of labor unions in its stores. Retailer moved for summary judgment....

39. Lai Chan v. Chinese-American Planning Council Home Attendant Program, Inc.

Supreme Court, New York County, New York. | September 9, 2015 | 50 Misc.3d 201

Headnote: Not every suit concerning employment or tangentially involving a collective bargaining unit is preempted by the LMRA. Labor Management Relations Act, 1947, §301(a), 29 U.S.C.A. §185(a).

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Union worker's class action claims against employer home health care services provider were not preempted by Labor Management Relations Act.

40. Lai Chan v. Chinese-American Planning Council Home Attendant Program, Inc.

Supreme Court, New York County, New York. | September 9, 2015 | 50 Misc.3d 201

Headnote: The NLRA does not comprehensively occupy an entire field of regulation, as required for implied preemption of state law, but rather left room for state law to regulate the substantive labor standards by setting a baseline for employment negotiations,while retaining the ability to regulate the bargaining process. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Union worker's class action claims against employer home health care services provider were not preempted by Labor Management Relations Act.

41. Lai Chan v. Chinese-American Planning Council Home Attendant Program, Inc.

Supreme Court, New York County, New York. | September 9, 2015 | 50 Misc.3d 201

Headnote: Preemption under NLRA should not be lightly inferred, since the establishment of labor standards falls within the traditional police power of the state. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Union worker's class action claims against employer home health care services provider were not preempted by Labor Management Relations Act.

42. Lai Chan v. Chinese-American Planning Council Home Attendant Program, Inc.

Supreme Court, New York County, New York. | September 9, 2015 | 50 Misc.3d 201

Headnote: The NLRA does not contain an express preemption provision. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Union worker's class action claims against employer home health care services provider were not preempted by Labor Management Relations Act.

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43. Lai Chan v. Chinese-American Planning Council Home Attendant Program, Inc.

Supreme Court, New York County, New York. | September 9, 2015 | 50 Misc.3d 201

Headnote: Machinists preemption applies to conduct that the NLRA left unregulated. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Union worker's class action claims against employer home health care services provider were not preempted by Labor Management Relations Act.

44. Filo Foods, LLC v. City of SeaTac

Supreme Court of Washington, En Banc. | August 20, 2015 | 183 Wash.2d 770

Headnote: Under the Garmon preemption doctrine, the text of National Labor Relations Act (NLRA) may affirmatively conflict with and, thus, preempt a state or local law. National Labor Relations Act, §§1-19, 29 U.S.C.A. §§151-169.

Document Summary: Background: Employers brought action against city, city clerk, and Port of Seattle, which was a special-purpose municipal corporation that, among other things, owned and operated the...

45. Filo Foods, LLC v. City of SeaTac

Supreme Court of Washington, En Banc. | August 20, 2015 | 183 Wash.2d 770

Headnote: Garmon pre-emption forbids States to regulate activity that the National Labor Relations Act (NLRA) protects, prohibits, or arguably protects or prohibits. National Labor Relations Act, §§1-19, 29 U.S.C.A. §§151-169.

Document Summary: Background: Employers brought action against city, city clerk, and Port of Seattle, which was a special-purpose municipal corporation that, among other things, owned and operated the...

46. Filo Foods, LLC v. City of SeaTac

Supreme Court of Washington, En Banc. | August 20, 2015 | 183 Wash.2d 770

Headnote: Under the Machinists preemption doctrine, the text of the National Labor Relations Act (NLRA) need not affirmatively conflict with a state or local law, but rather the NLRA's structure implies that Congress intended certain aspects of labor relations to remain unregulated; thus, preemption under Machinists forbids States to regulate conduct that Congress intended be unregulated and left to be controlled by the free play of economic forces. National Labor Relations Act, §§1-19, 29 U.S.C.A. §§151-169.

Document Summary: Background: Employers brought action against city, city clerk, and Port of Seattle, which was a special-purpose municipal corporation that, among other things, owned and operated the...

47. Filo Foods, LLC v. City of SeaTac

Supreme Court of Washington, En Banc. | August 20, 2015 | 183 Wash.2d 770

Headnote: Machinists pre-emption is based on the premise that, in the National Labor Relations Act (NLRA), Congress struck a balance of protection, prohibition, and laissez-faire in respect to union organization, collective bargaining, and labor disputes. National Labor Relations Act, §§1-19, 29 U.S.C.A. §§151-169.

Document Summary: Background: Employers brought action against city, city clerk, and Port of Seattle, which was a special-purpose municipal corporation that, among other things, owned and operated the...

48. Filo Foods, LLC v. City of SeaTac

Supreme Court of Washington, En Banc. | August 20, 2015 | 183 Wash.2d 770

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Headnote: State substantive labor standards, including minimum wages, are not invalid under National Labor Relations Act (NLRA) simply because they apply to particular trades, professions, or job classifications rather than to the entire labor market. National Labor Relations Act, §§1-19, 29 U.S.C.A. §§151-169.

Document Summary: Background: Employers brought action against city, city clerk, and Port of Seattle, which was a special-purpose municipal corporation that, among other things, owned and operated the...

49. Wal-Mart Stores, Inc. v. United Food and Commercial Workers Intern. Union

Court of Appeals of Washington, Division 2. | June 30, 2015 | 190 Wash.App. 14

Headnote: To be preempted by the National Labor Relations Act (NLRA), a state cause of action need only be potentially subject to sections of the NLRA guaranteeing employees the right to organize and collectively bargain and prohibiting employers from interfering with employees' engaging in protected activities. National Labor Relations Act, §§7, 8(a)(1), 29 U.S.C.A. §§157, 158(a)(1).

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Retail store owner's state law trespass claims against union were preempted under National Labor Relations Act (NLRA).

50. Wal-Mart Stores, Inc. v. United Food and Commercial Workers Intern. Union

Court of Appeals of Washington, Division 2. | June 30, 2015 | 190 Wash.App. 14

Headnote: A party asserting that a state law claim is preempted by the National Labor Relations Act (NLRA) must put forth sufficient evidence for a court to conclude that the conduct at issue is potentially subject to the NLRA. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Retail store owner's state law trespass claims against union were preempted under National Labor Relations Act (NLRA).

51. Wal-Mart Stores, Inc. v. United Food and Commercial Workers Intern. Union

Court of Appeals of Washington, Division 2. | June 30, 2015 | 190 Wash.App. 14

Headnote: Determining whether a state law claim is preempted by the National Labor Relations Act (NLRA) is a purely jurisdictional issue. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Retail store owner's state law trespass claims against union were preempted under National Labor Relations Act (NLRA).

52. Wal-Mart Stores, Inc. v. United Food and Commercial Workers Intern. Union

Court of Appeals of Washington, Division 2. | June 30, 2015 | 190 Wash.App. 14

Headnote: National Labor Relations Act (NLRA) preempts state court lawsuits involving labor matters because Congress has entrusted administration of the labor policy for the nation to National Labor Relations Board (NLRB), a centralized administrative agency armed with its own procedures and equipped with specialized knowledge and cumulative experience. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Retail store owner's state law trespass claims against union were preempted under National Labor Relations Act (NLRA).

53. Wal-Mart Stores, Inc. v. United Food and Commercial Workers Intern. Union

Court of Appeals of Washington, Division 2. | June 30, 2015 | 190 Wash.App. 14

Headnote: In determining whether a state law claim is preempted by the National Labor Relations Act (NLRA), the critical inquiry is whether the controversy presented to the state court is identical with that which could be presented to the National Labor Relations Board (NLRB). National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

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3 Cases that cite this legal issue

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Retail store owner's state law trespass claims against union were preempted under National Labor Relations Act (NLRA).

54. Wal-Mart Stores, Inc. v. United Food and Commercial Workers Intern. Union

Court of Appeals of Washington, Division 2. | June 30, 2015 | 190 Wash.App. 14

Headnote: There are two exceptions to doctrine pursuant to which the National Labor Relations Act (NLRA) preempts a state law claim that is based on conduct arguably subject to the NLRA: (1) when the regulated activity under state law is merely a peripheral concern of the NLRA, or (2) when the regulated activity touches an interest so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, there is no inference Congress intended to deprive the states of the power to act. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Labor Relations Boards. Retail store owner's state law trespass claims against union were preempted under National Labor Relations Act (NLRA).

55. Aguilar v. Husco Intern., Inc.

Supreme Court of Wisconsin. | April 1, 2015 | 361 Wis.2d 597

Headnote: Preemptive effect of Labor Management Relations Act's (LMRA) jurisdictional provision is question of law. Labor Management Relations Act, §301(a), 29 U.S.C.A. §185(a).

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Employees were not entitled to back pay for unpaid 20-minute meal breaks, since unpaid breaks were allowed under collective bargaining agreement.

56. Aguilar v. Husco Intern., Inc.

Supreme Court of Wisconsin. | April 1, 2015 | 361 Wis.2d 597

Headnote: Preemption under Labor Management Relations Act's (LMRA) jurisdictional provision preserves the central role of arbitration in labor disputes, by ensuring that employees exhaust the grievance procedures set forth in a collective bargaining agreement before bringing a claim in court, and ensures that common terms in collective bargaining agreements are not given different interpretations in different jurisdictions. Labor Management Relations Act, §301(a), 29 U.S.C.A. §185(a).

Document Summary: LABOR AND EMPLOYMENT - Hours and Wages. Employees were not entitled to back pay for unpaid 20-minute meal breaks, since unpaid breaks were allowed under collective bargaining agreement.

57. Anthony v. Verizon Virginia, Inc.

Supreme Court of Virginia. | June 5, 2014 | 288 Va. 20

Headnote: Circuit court erred by dismissing employees' claims against their union and former employer for lack of jurisdiction after case had been remanded from federal court; even if employees' claims were completely preempted under Labor Management RelationsAct (LMRA), then, by operation of law, claims were transformed from state tort claims to claims under LMRA section governing suits by and against labor organizations, circuit court would have possessed concurrent jurisdiction over LMRA claims if emp loyees had originally filed claims in state court, and, therefore, it would be perfectly logical that the circuit court also possessed jurisdiction to try employees' claims following remand. Labor Management Relations Act, 1947, §301(a), 29 U.S.C.A. §185(a).

Document Summary: LABOR AND EMPLOYMENT - Collective Bargaining. Employees' fraud claims were sufficiently independent of labor contract interpretation to avoid pre-emption under LMRA.

58. Henry v. Laborers' Local 1191

Supreme Court of Michigan. | May 5, 2014 | 495 Mich. 260

Headnote: One exception to preemption of state law regulations that are arguably subject to the National Labor Relations Act (NLRA) is where the activity regulated is a merely peripheral concern of the NLRA. National Labor Relations Act, §§7, 8, 29 U.S.C.A. §§157, 158.

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Whistleblowing. Union employees' allegations related to criminal conduct of union were not preempted by NLRA or LMRDA.

59. Henry v. Laborers' Local 1191

Supreme Court of Michigan. | May 5, 2014 | 495 Mich. 260

Headnote: One exception to preemption of state law regulations that are arguably subject to the National Labor Relations Act (NLRA) is where the regulated conduct touches interests so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, courts could not infer that Congress had deprived the States of the power to act. National Labor Relations Act, §§7, 8, 29 U.S.C.A. §§157, 158.

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Whistleblowing. Union employees' allegations related to criminal conduct of union were not preempted by NLRA or LMRDA.

60. Henry v. Laborers' Local 1191

Supreme Court of Michigan. | May 5, 2014 | 495 Mich. 260

Headnote: When considering whether state law regulations are preempted by the National Labor Relations Act (NLRA), courts must consider whether there exists a significant state interest in protecting the citizen from the challenged conduct and whether the exercise of state jurisdiction over the state claim entails little risk of interference with the regulatory jurisdiction of the National Labor Relations Board (NLRB). National Labor Relations Act, §§7, 8, 29 U.S.C.A. §§157, 158.

Document Summary: LABOR AND EMPLOYMENT - Whistleblowing. Union employees' allegations related to criminal conduct of union were not preempted by NLRA or LMRDA.

61. Henry v. Laborers' Local 1191

Supreme Court of Michigan. | May 5, 2014 | 495 Mich. 260

Headnote: When the conduct at issue in the state litigation is arguably prohibited by the National Labor Relations Act (NLRA) and thus within the exclusive jurisdiction of the National Labor Relations Board (NLRB), the critical inquiry in determining whether an exception to preemption applies is whether the controversy presented to the state court is identical with that which could be presented to the Board. National Labor Relations Act, §§7, 8, 29 U.S.C.A. §§157, 158.

Document Summary: LABOR AND EMPLOYMENT - Whistleblowing. Union employees' allegations related to criminal conduct of union were not preempted by NLRA or LMRDA.

62. Castillo v. Brownsville-Valley Regional Medical Center, Inc.

Court of Appeals of Texas, Corpus Christi–Edinburg. | December 19, 2013 | 421 S.W.3d 263

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Headnote: In determining whether state law is preempted by federal labor law, court focuses on conduct that forms basis of underlying claim, not characterization of claim under state law, and whether controversy presented to state court is identical to, or different from, controversy that could have been presented to National Labor Relations Board (NLRB).

Document Summary: LABOR AND EMPLOYMENT - Concerted Activities. State whistleblower law claims were preempted by federal labor law.

63. Castillo v. Brownsville-Valley Regional Medical Center, Inc.

Court of Appeals of Texas, Corpus Christi–Edinburg. | December 19, 2013 | 421 S.W.3d 263

Headnote: When conduct at issue is of only peripheral concern to federal law or touches interests deeply rooted in local feeling and responsibility, NLRA may not preempt state law regulating that conduct. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Concerted Activities. State whistleblower law claims were preempted by federal labor law.

64. Sucart v. Office of Commissioner

District Court of Appeal of Florida, Third District. | December 18, 2013 | 129 So.3d 1112

Headnote: Tort claims asserted by Office of the Commissioner of Baseball against participants in alleged scheme to distribute performance-enhancing drugs to players were not clearly preempted by federal Labor Management Relations Act, and thus trial court did not depart from the essential requirements of law by denying motions for protective orders filed by nonparties who were subpoenaed to be deposed, in which they alleged that trial court lacked subject matter jurisdiction due to such preemption; collective bargaining agreement between Commissioner and players union was at best ancillary to lawsuit, and nonparties failed to identify any provision of agreement that would need to be construed. Labor Management Relations Act, 1947, §301, 29 U.S.C.A. §185.

Document Summary: TORTS - Discovery. Nonparties who resisted subpoenas had standing to challenge trial court's subject matter jurisdiction.

65. Flecker v. Statue Cruises, LLC

Superior Court of New Jersey, Law Division, Hudson County. | June 13, 2013 | 444 N.J.Super. 1

Headnote: The broad preemption rule regarding the National Labor Relations Act (NLRA) does not apply when the arguably protected or prohibited activities touch interests so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, a court could not infer that Congress had deprived the States of the power to act. National Labor Relations Act, §7, 29 U.S.C.A. §157.

Document Summary: MARITIME LAW - Wages. Seaman's New Jersey Wage and Hour Law (NJWHL) claim was preempted by federal admiralty and maritime law.

66. Internal. Union of Operating Engineers, Local 18 v. CNR Trucking Inc.

Court of Appeals of Ohio, Eighth District, Cuyahoga County. | May 23, 2013 | 992 N.E.2d 503

Headnote: Doctrine of preemption in labor law was developed to prevent state court interference with the federal regulatory scheme set forth in the National Labor Relations Act (NLRA). National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unions. Union's tortious interference with contract claim against competing union was subject to dismissal by operation of Garmon preemption.

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67. Internal. Union of Operating Engineers, Local 18 v. CNR Trucking Inc.

Court of Appeals of Ohio, Eighth District, Cuyahoga County. | May 23, 2013 | 992 N.E.2d 503

Headnote: The overriding goal of preemption is to promote a uniform application of the National Labor Relations Act (NLRA) by a centralized administrative agency, thereby avoiding potential conflict of rules of law, of remedy, and of administration,' promulgated by different tribunals. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unions. Union's tortious interference with contract claim against competing union was subject to dismissal by operation of Garmon preemption.

68. Internal. Union of Operating Engineers, Local 18 v. CNR Trucking Inc.

Court of Appeals of Ohio, Eighth District, Cuyahoga County. | May 23, 2013 | 992 N.E.2d 503

Headnote: “Garmon preemption” forbids state and local regulation of activities arguably protected under the National Labor Relations Act (NLRA) or prohibited as an unfair labor practice; Garmon preemption analysis focuses on the conduct or activities involved, and not the cause of action alleged, when determining whether the cause is preempted by the NLRA. National Labor Relations Act, §1 et seq., as amended, 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unions. Union's tortious interference with contract claim against competing union was subject to dismissal by operation of Garmon preemption.

69. Internal. Union of Operating Engineers, Local 18 v. CNR Trucking Inc.

Court of Appeals of Ohio, Eighth District, Cuyahoga County. | May 23, 2013 | 992 N.E.2d 503

Headnote: Under “Machinists preemption,” a labor regulation will be preempted if Congress intended that the conduct involved be unregulated and left to the free play of economic forces; Machinists preemption analysis focuses on the conduct or activities involved, and not the cause of action alleged, when determining whether the cause is preempted by the NLRA. National Labor Relations Act, §1 et seq., as amended, 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unions. Union's tortious interference with contract claim against competing union was subject to dismissal by operation of Garmon preemption.

70. Pabon v. Many

Supreme Court, Appellate Division, Second Department, New York. | October 10, 2012 | 99 A.D.3d 773

Headnote: A state law cause of action is preempted by the Labor Management Relations Act (LMRA) if it depends upon an interpretation of a collective bargaining agreement (CBA) for its resolution. Labor Management Relations Act, 1947, §301, 29 U.S.C.A. §185.

Document Summary: TORTS - Tortious Interference. Employee's tortious interference with contract claim was preempted by the Labor Management Relations Act (LMRA).

71. Gest v. Oregon AFL-CIO

Court of Appeals of Oregon. | April 4, 2012 | 249 Or.App. 234

Headnote: In passing the National Labor Relations Act (NLRA), Congress largely displaced state regulation of industrial relations. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Concerted Activities. NLRA preempted former employee's claim of intentional interference with economic relations.

72. Gest v. Oregon AFL-CIO

Court of Appeals of Oregon. | April 4, 2012 | 249 Or.App. 234

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Headnote: Under the general rule governing National Labor Relations Act (NLRA) preemption, state jurisdiction must yield to the exclusive primary competence of the National Labor Relations Board (NLRB) in all labor disputes that involve activities that the NLRA protects, prohibits, or arguably protects or prohibits. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Concerted Activities. NLRA preempted former employee's claim of intentional interference with economic relations.

73. Electrical Contractors, Inc. v. Department of Educ.

Supreme Court of Connecticut. | January 17, 2012 | 303 Conn. 402

Headnote: Machinists preemption, which forbids both the National Labor Relations Board (NLRB) and States to regulate conduct that Congress intended to be unregulated because it wanted it left to be controlled by the free play of economic forces, is based on the premise that Congress struck a balance of protection, prohibition, and laissez-faire in respect to union organization, collective bargaining, and labor disputes. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: GOVERNMENT CONTRACTS - Parties. Nonunion contractor stated colorable claim of injury as required for non-statutory standing in action against State.

74. Skyline Roofing & Sheet Metal Co., Inc. v. Ziolkowski Const., Inc.

Court of Appeals of Indiana. | October 25, 2011 | 957 N.E.2d 176

Headnote: Even if conduct is arguably prohibited by National Labor Relations Act (NLRA), a plaintiff's claim is not preempted by the NLRA when: (1) the activity regulated is a merely peripheral concern of federal labor laws, or (2) the regulated conduct touches interests so deeply rooted in local feeling and responsibility that preemption cannot be inferred absent compelling congressional direction. National Labor Relations Act, §8(b)(4)(ii)(B), 29 U.S.C.A. §158(b)(4)(ii)(B).

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Non-union subcontractor whose antitrust claim against union was preempted by NLRA stated a claim against union under LMRA.

75. Skyline Roofing & Sheet Metal Co., Inc. v. Ziolkowski Const., Inc.

Court of Appeals of Indiana. | October 25, 2011 | 957 N.E.2d 176

Headnote: When determining whether the local-interest exception applies to prevent preemption of a claim of activity arguably prohibited by the National Labor Relations Act (NLRA), a court must consider whether there is a significant state interest in protecting the citizen from the challenged conduct and whether the exercise of state jurisdiction over the tort claim entails little risk of interference with the regulatory jurisdiction of the National Labor Relations Board. National Labor Relations Act, §8(b)(4)(ii)(B), 29 U.S.C.A. §158(b)(4)(ii)(B).

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Non-union subcontractor whose antitrust claim against union was preempted by NLRA stated a claim against union under LMRA.

76. Castillo v. Toll Bros., Inc.

Court of Appeal, First District, Division 1, California. | July 28, 2011 | 197 Cal.App.4th 1172

Headnote: Machinists pre-emption under the National Labor Relations Act (NLRA) forbids both the National Labor Relations Board (NLRB) and States to regulate conduct that Congress intended be unregulated and left to be controlled by the free play of economic forces. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Employer's Liability. Court examines statute holding builder liable if contract price does not allow subcontractor to meet legal obligations.

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77. Castillo v. Toll Bros., Inc.

Court of Appeal, First District, Division 1, California. | July 28, 2011 | 197 Cal.App.4th 1172

Headnote: Preemption of certain labor regulation conduct, on grounds that Congress, through the National Labor Relations Act (NLRA), intended such conduct be unregulated and left to be controlled by the free play of economic forces, does not extend to local establishment of substantive employment terms. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Employer's Liability. Court examines statute holding builder liable if contract price does not allow subcontractor to meet legal obligations.

78. Castillo v. Toll Bros., Inc.

Court of Appeal, First District, Division 1, California. | July 28, 2011 | 197 Cal.App.4th 1172

Headnote: Court would decline to resolve issue of whether National Labor Relations Act (NLRA) impliedly preempted state statute authorizing a contractor's employees to sue the contractor's hirer if the hirer pays a contract price insufficient to permit the contractor to comply with "all applicable local, state, and federal laws or regulations governing the labor or services to be provided," as claims by subcontractor's employees against builder which hired subcontractor did not seek to enforce any provisions of the NLRA, but rather involved violations of state wage-and-hour statutes, and thus argument was effectively an unripe as-applied challenge to the statute. National Labor Relations Act, §1, 29 U.S.C.A. §151; West's Ann.Cal.Labor Code §8210.

Document Summary: LABOR AND EMPLOYMENT - Employer's Liability. Court examines statute holding builder liable if contract price does not allow subcontractor to meet legal obligations.

79. Castillo v. Toll Bros., Inc.

Court of Appeal, First District, Division 1, California. | July 28, 2011 | 197 Cal.App.4th 1172

Headnote: California may adopt and enforce minimum employment standards without running afoul of the National Labor Relations Act (NLRA), particularly if the standards apply equally to unionized and nonunionized workers. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Employer's Liability. Court examines statute holding builder liable if contract price does not allow subcontractor to meet legal obligations.

80. California Grocers Assn. v. City of Los Angeles

Supreme Court of California | July 18, 2011 | 52 Cal.4th 177

Headnote: As in any pre-emption analysis, in determining whether state or local law is preempted by the National Labor Relations Act (NLRA) the purpose of Congress is the ultimate touchstone. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Layoffs. Grocery worker retention ordinance was not preempted.

81. California Grocers Assn. v. City of Los Angeles

Supreme Court of California | July 18, 2011 | 52 Cal.4th 177

Headnote: Because the National Labor Relations Act (NLRA) is not a federal code of employment law, NLRA preemption does not extend to local establishment of substantive employment terms. National Labor Relations Act, §1, 29 U.S.C.A. §151.

2 Cases that cite this legal issue

Document Summary: LABOR AND EMPLOYMENT - Layoffs. Grocery worker retention ordinance was not preempted.

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82. California Grocers Assn. v. City of Los Angeles

Supreme Court of California | July 18, 2011 | 52 Cal.4th 177

Headnote: Just as employment regulations aimed solely at unionized workers may intrude into aspects of organizing and bargaining Congress intended the states not to regulate, thus supporting National Labor Relations Act (NLRA) preemption, so may regulations that apply only to nonunionized workers and select out unionized workers for disfavored status be preempted as forcing employees to choose between exercising their right to enter a collective bargaining agreement and having their state-granted employment rights enforced. National Labor Relations Act, §1, 29 U.S.C.A. §151.

1 Case that cites this legal issue

Document Summary: LABOR AND EMPLOYMENT - Layoffs. Grocery worker retention ordinance was not preempted.

83. California Grocers Assn. v. City of Los Angeles

Supreme Court of California | July 18, 2011 | 52 Cal.4th 177

Headnote: Nothing in the National Labor Relations Act (NLRA) indicates Congress intended to prevent states and localities from attacking employment problems industry by industry, as they traditionally have. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Layoffs. Grocery worker retention ordinance was not preempted.

84. California Grocers Assn. v. City of Los Angeles

Supreme Court of California | July 18, 2011 | 52 Cal.4th 177

Headnote: When evaluating claims of National Labor Relations Act (NLRA) preemption, courts may not substitute their own views of sound economic policy for those of the elected branches. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Layoffs. Grocery worker retention ordinance was not preempted.

85. California Grocers Assn. v. City of Los Angeles

Supreme Court of California | July 18, 2011 | 52 Cal.4th 177

Headnote: When evaluating claims of National Labor Relations Act (NLRA) preemption, courts inquire solely into whether the challenged regulation is one Congress sought to preclude. National Labor Relations Act, §1, 29 U.S.C.A. §151.

Document Summary: LABOR AND EMPLOYMENT - Layoffs. Grocery worker retention ordinance was not preempted.

86. Metropolitan Milwaukee Ass'n of Commerce, Inc. v. City of Milwaukee

Court of Appeals of Wisconsin. | March 24, 2011 | 332 Wis.2d 459

Headnote: “Machinists doctrine,” protecting against state interference with policies implicated by the structure of the National Labor Relations Act (NLRA), by preempting state law and state causes of action concerning conduct that Congress intended to be unregulated, does not preempt laws that establish minimum labor standards, because such standards do not encourage or discourage the collective bargaining process but, rather, are minimum standards that devolve on employees as individual workers independent of the bargaining process; minimum labor standards in this context are those that affect union and nonunion employees equally. National Labor Relations Act, 1 et. seq., 29 U.S.C.A. §151 et seq.

Document Summary: GOVERNMENT - Municipalities. City ordinance requiring paid sick leave for employees within city was a valid exercise of authority under direct legislation statute.

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87. Metropolitan Milwaukee Ass'n of Commerce, Inc. v. City of Milwaukee

Court of Appeals of Wisconsin. | March 24, 2011 | 332 Wis.2d 459

Headnote: Where a state law claim depends upon both the interpretation of a collective bargaining agreement and a separate state law analysis, federal law governs the interpretation of the agreement but the separate state law analysis is not thereby preempted. Labor Management Relations Act, 1947, §301, 29 U.S.C.A. §185.

Document Summary: GOVERNMENT - Municipalities. City ordinance requiring paid sick leave for employees within city was a valid exercise of authority under direct legislation statute.

88. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: The National Labor Relations Act (NLRA) preempts a state law claim that is based on conduct arguably subject to its sections guaranteeing the right of employees to organize and collectively bargain and prohibiting employer interference with employees engaging in organizing and collective bargaining; to be preempted, a cause of action need only be potentially subject to these sections of the NLRA. National Labor Relations Act, §§7, 8(a)(1), 29 U.S.C.A. §§157, 158(a)(1).

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

89. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: The party asserting preemption of a state law claim under the National Labor Relations Act (NLRA) must put forth sufficient evidence for the court to conclude that the conduct at issue is potentially subject to the NLRA. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

90. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: While a party's status is unquestionably material to the determining whether a state law claim is preempted under the National Labor Relations Act (NLRA), there are circumstances where an excluded party may be covered in order to protect a covered party. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

91. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: For the Garmon preemption doctrine to apply, such that a state law claim is preempted by the National Labor Relations Act (NLRA), the controversy presented to the state court must be identical with that which could be presented to the National Labor Relations Board (NLRB). National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

92. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

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Headnote: Preemption of a state law claim by the National Labor Relations Act (NLRA) is designed to shield the system from conflicting regulation of conduct, and it is therefore the conduct being regulated, not the legal standards, that courts focus on in deciding whether the National Labor Relations Board's (NLRB) jurisdiction is exclusive. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

93. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: There are two exceptions to Garmon preemption doctrine, pursuant to which the National Labor Relations Act (NLRA) preempts a state law claim that is based on conduct arguably subject to the NLRA: (1) when the regulated activity under state law is merely a peripheral concern of the NLRA, or (2) when the regulated activity touches an interest so deeply rooted in local feeling and responsibility that, in the absence of compelling congressional direction, there is no inference Congress intended to deprive the states of the power to act. National Labor Relations Act, §§7, 8(a)(1), 29 U.S.C.A. §§157, 158(a)(1).

2 Cases that cite this legal issue

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

94. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: The peripheral concern exception to the Garmon preemption doctrine, pursuant to which the National Labor Relations Act (NLRA) preempts a state law claim that is based on conduct arguably subject to the NLRA, applies only in cases where the underlying conduct, even if arguably related to the NLRA, is a peripheral federal concern. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

95. Kilb v. First Student Transportation, LLC

Court of Appeals of Washington, Division 2. | August 3, 2010 | 157 Wash.App. 280

Headnote: For purposes of local concern exception to the Garmon preemption doctrine, pursuant to which the National Labor Relations Act (NLRA) preempts a state law claim that is based on conduct arguably subject to the NLRA, even where a clear state public policy exists, a state claim will be preempted where Congress intended to deprive states of the power to act. National Labor Relations Act, §1 et seq., 29 U.S.C.A. §151 et seq.

2 Cases that cite this legal issue

Document Summary: LABOR AND EMPLOYMENT - Unfair Labor Practices. Former employee's state law wrongful discharge claim against employer was preempted by the National Labor Relations Act

96. Giant of Maryland, LLC v. Taylor

Court of Special Appeals of Maryland. | September 30, 2009 | 188 Md.App. 1

Headnote: Whether a state law claim is preempted by the LMRA is a question of law, which appellate courts review de novo. Labor Management Relations Act, 1947, §301, 29 U.S.C.A. §185.

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Document Summary: LABOR AND EMPLOYMENT - Discrimination. Employee's state law discrimination and retaliation claims were preempted under Labor Management Relations Act.

97. Giant of Maryland, LLC v. Taylor

Court of Special Appeals of Maryland. | September 30, 2009 | 188 Md.App. 1

Headnote: When the question of LMRA preemption arises in the removal context, the federal court decides the issue based upon the allegations within the four corners of the complaint. Labor Management Relations Act, 1947, §301, 29 U.S.C.A. §185.

Document Summary: LABOR AND EMPLOYMENT - Discrimination. Employee's state law discrimination and retaliation claims were preempted under Labor Management Relations Act.

98. St. John's Mercy Health System v. Division of Employment Sec.

Supreme Court of Missouri, En Banc. | January 13, 2009 | 273 S.W.3d 510

Headnote: State laws regulating or prohibiting conduct protected by the National Labor Relations Act (NLRA) are preempted.

Document Summary: LABOR AND EMPLOYMENT - Unemployment Compensation. Claimants were eligible for unemployment benefits during their unfair labor practice strike.

99. St. John's Mercy Health System v. Division of Employment Sec.

Supreme Court of Missouri, En Banc. | January 13, 2009 | 273 S.W.3d 510

Headnote: State courts do not have jurisdiction over unfair labor practices, as those claims are preempted by the National Labor Relations Act (NLRA).

Document Summary: LABOR AND EMPLOYMENT - Unemployment Compensation. Claimants were eligible for unemployment benefits during their unfair labor practice strike.

100. Dallas Area Rapid Transit v. Amalgamated Transit Union Local No. 1338

Supreme Court of Texas. | December 19, 2008 | 273 S.W.3d 659

Headnote: Urban Mass Transit Act of 1964 (UMTA) did not impliedly preempt a Texas regional public transportation authority's immunity from suit under Texas law, with respect to a labor union's action for breach of contract, relating to the resolution of a general grievance over wages and benefits; immunity from suit under state law took nothing away from labor union to which it was entitled under UMTA, because UMTA required only that, as condition of federal financial assistance to a transportation authority, the interests of employees affected by the assistance had to be protected under arrangements the United States Secretary of Labor concluded were fair and equitable, the labor union did not argue that the arrangement negotiated by union and approved by Secretary of Labor was less than fair and equitable, and the arrangement did not provide for binding or judicially enforceable resolutions of general grievances. 49 U.S.C.A. §5333(b); V.T.C.A., Government Code §617.005; V.T.C.A., Transportation Code §452.052(c).

8 Cases that cite this legal issue

Document Summary: GOVERNMENT - Immunity. Federal law did not preempt regional public transportation authority's immunity from suit.

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